

25STCV36550 25STCV36550

County: los-angeles

Division: Civil Law and Motion

Department: 300

Hearing date: 2026-06-25

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Case Number: 25STCV36550 Hearing Date: June 25, 2026 Dept: 300

CASE NUMBER: 25STCV36550

CASE NAME: Rocco Angiuli, et al. vs. University of
Southern California, et al.

TYPE OF MOTION: Demurrer with Motion to Strike

FILING PARTY: Defendants County of Los

Angeles, Los Angeles County Department of Health Services, Los Angeles General
Medical Center, Jorge Orozco, Christina R. Ghaly, M.D., Carolyn Meltzer, M.D.,
Helen Min Shen, M.D., Arun Paul Amar, M.D., Brian N. Williams, M.D., Kazuhide
Matsushima, M.D., Billy Lin, M.D., Gene Young Sung, M.D., Lee Plantmason, M.D.,
Natalie Yanzi Ring, M.D., Gautam Ganguly, M.D.

RESPONDING

PARTY: Plaintiffs Rocco Angiuli,
Vito Angiuli, and John A. Angiuli

HEARING DATE: June 25, 2026

Case Background

This action arises from decedent Domenica Angiuli (Decedent)
hospitalization on December 14, 2024, for a head injury sustained after falling
at her home. The complaint alleges that during Decedent's hospitalization
sepsis developed and spread throughout her body leading to her death on
December 26, 2024.

On December 15, 2025, Plaintiffs Rocco Angiuli, Vito Angiuli, and John A. Angiuli (collectively, Plaintiffs) filed a complaint against Defendants University of Southern California, County of Los Angeles, Los Angeles County Department of Health Services, Los Angeles General Medical Center, Keck Medicine of USC, USC Health System, Rodney B. Hanners, Beong-Soo Kim, Jorge Orozco, Christina R. Ghaly, MD, Carolyn Meltzer, MD, Helen Min Shen, MD, Arun Paul Amar, MD, Brian N. Williams, MD, Kazuhide Matsushima, MD, Billy Lin MD, Gene Young Sung, MD, Lee Plantmason, MD, Natalie Yanzi Ring, MD, Gautam Ganguly, MD and DOES 1 through 50 asserting causes of action for: (1) Medical Malpractice; (2) Wrongful Death; and (3) Elder Abuse (Welf. & Inst. § 15610.57).

On April 20, 2026, Defendants County of Los Angeles, Los Angeles County Department of Health Services, Los Angeles General Medical Center, Jorge Orozco, Christina R. Ghaly, M.D., Carolyn Meltzer, M.D., Helen Min Shen, M.D., Arun Paul Amar, M.D., Brian N. Williams, M.D., Kazuhide Matsushima, M.D., Billy Lin, M.D., Gene Young Sung, M.D., Lee Plantmason, M.D., Natalie Yanzi Ring, M.D., Gautam Ganguly, M.D. (collectively, County Defendants) filed the instant demurrer and motion to strike.

On June 11, 2026, Plaintiffs filed an opposition.
County Defendants filed a reply on June 17, 2026.

Instant Pleading

The County Defendants demur to Plaintiffs' complaint on the grounds that (1) the third cause of action is barred because the underlying government claim failed to identify the specific facts or theory of elder abuse; (2) the third cause of action for elder abuse fails to state a cause of action; and (3) the survival action is improperly pled as it fails to comply with the statutory requirements of Code of Civil Procedure section 377.32.

Request for Judicial Notice

The County Defendants request that the Court take judicial notice of the following:

(1)
Plaintiffs' initial government claim (dated June 20, 2024) and Plaintiffs' amended claim (dated June 24, 2024). Plaintiffs'

government claim documents are attached as Exhibit A to Defendants' concurrently filed Demurrer.

The County Defendants request for judicial notice is GRANTED pursuant to Evidence Code section 452(h).

Decision

The demurrer is SUSTAINED as to the third cause of action for elder abuse as to the County Defendants without leave to amend. The demurrer is otherwise OVERRULED. The motion to strike is GRANTED.

Legal Standard

Demurrer

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc., § 430.10, subd. (e).) A party may also demur to a complaint on the grounds that the complaint is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10, subdivision (f), is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (*Rakestraw v. California Physicians' Serv.* (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (*Ibid.*)

Meet and Confer

Before filing a demurrer or motion to strike, the moving party must meet and confer in person or by telephone with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading. (Code Civ. Proc., §§ 430.41, 435.5.)

Here, the County Defendants Counsel, Destinee J. Moya-Norsian (Counsel) states that the parties met and conferred on March 18, 2026, and again on April 16, 2026, but were unable to reach an agreement. (Moya-Norsian Decl., ¶ 3.) As such, the Court finds that the County Defendants have satisfied their meet and confer obligation prior to the filing of the instant demurrer.

Discussion

The County Defendants demur to Plaintiffs' complaint on the grounds that (1) the third cause of action is barred because the underlying government claim failed to identify the specific facts or theory of elder abuse; (2) the third cause of action for elder abuse fails to state a cause of action; and (3) the survival action is improperly pled as it fails to comply with the statutory requirements of Code of Civil Procedure section 377.32.

1.

Third Cause of Action – Elder Abuse –
Gov. Claim

The County Defendants argue that Plaintiffs' third cause of action for elder abuse fails because Plaintiff's Government Claim "failed to provide the requisite notice of the facts and legal theory now

asserted in the Complaint.” (Demurrer, p. 8.)

The California Tort Claims Act (Act) (Gov. Code § 810 et seq.) governs actions against public entities and public employees. The timeliness of such actions is governed by the specific statute of limitations set forth in the Government Code, not the statute of limitations applicable to private defendants. (County of Los Angeles v. Superior Court (2005) 127 Cal.App.4th 1263, 1267-1268, citing Moore v. Twomey (2004) 120 Cal.App.4th 910, 913-914; Martell v. Antelope Valley Hospital Medical Center (1998) 67 Cal.App.4th 978, 981.)

“Where recovery of damages from a public employee is sought, the Tort Claims Act requires the presentation, in accordance with its provisions, of all claims for money damages against public entities.” (Fisher v. Pickens (1990) 225 Cal.App.3d 708, 718.) Before a suit for damages may be filed against a public entity, a claimant must present a timely written claim to the public entity and the claim must have been acted upon by the board or deemed rejected. (Gov. Code, § 945.4; Munoz v. State of Cal. (1995) 33 Cal.App.4th 1767, 1777.) “The failure to do so bars the plaintiff from bringing suit against that entity.” (State of California v. Superior Court (2004) 32 Cal.4th 1234, 1237.) “California courts consistently held that failure to allege compliance with these claim presentation requirements subjected a complaint to a general demurrer for failure to state facts sufficient to constitute a cause of action.” (Ibid. at p. 1242.)

“If a plaintiff relies on more than one theory of recovery against the State, each cause of action must have been reflected in a timely claim. In addition, the factual circumstances set forth in the written claim must correspond with the facts alleged in the complaint; even if the claim were timely, the complaint is vulnerable to a demurrer if it alleges a factual basis of recovery which is not fairly reflected in the written claim.” (Nelson v. State of California (1982) 139 Cal.App.3d 72, 79.) However, “[a] claim need not contain the detail and specificity required of a pleading, but need only fairly describe what the entity is alleged to have done. [Citations.] As the purpose of the claim is to give the government entity notice sufficient to investigate and evaluate the claim....” (Castaneda, supra, 212 Cal.App.4th at 1062 [internal quotations omitted].)

Here, the claims filed on June 20, 2025, and June 25,

2025, are regarding Defendants alleged “failure to properly diagnose, failure to promptly diagnose, failure to provide adequate medical personnel, failure to timely intervene, and failure to provide services at the required standard of care.” (Request for Judicial Notice, Exhibits A-B.) The claims state Defendants “failed to ensure that physicians and nurses were properly trained to make the correct diagnoses; were properly trained for the indicated procedures; were promptly available to perform the indicated procedures; were adequately staffed and supplied; and/or were available to promptly and properly treat and save the life of decedent....” (Ibid.)

The Court finds that such allegations, asserted within the governmental claim, are insufficient to support a cause of action for elder abuse because such allegations describe Defendants alleged failure to provide medical treatment, diagnosis, training, and standard of care. Such claims involve issues of professional negligence (medical malpractice), not the reckless custodial conduct required for a claim of elder abuse. (See *Worsham v. O'Connor Hospital* (2014) 226 Cal.App.4th 331, 337-338.)

In opposition, Plaintiff concedes as much stating “the claims of decedent and her survivors are based on ‘inadequate treatment,’ ‘negligent treatment,’ and ‘misdeeds of doctors, nurses, and technicians.’” (Opposition, p. 3.)

Accordingly, the demurrer is SUSTAINED on this ground without leave to amend.

2.

Third Cause of Action – Elder Abuse –
Failure to State a Claim

The County Defendants argue that Plaintiffs’ third cause of action for elder abuse fails because the complaint’s allegations fail to rise to the level of recklessness required for a claim of elder abuse. (Demurrer, p. 11.)

“‘Abuse of an elder or a dependent adult’ means any of the following: (1) Physical abuse, neglect, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering[;]
(2) The deprivation by a care custodian of goods or services that are necessary to avoid physical harm or mental suffering[;] [and] (3) Financial abuse, as

defined in Section 15610.30.” (Welfare and Institutions Code, § 15610.07.)

“‘Elder’ means any person residing in this state, 65 years of age or older.” (Ibid., § 15610.27.)

As defined under Section 15610.57, “[n]eglect’ means...[t]he negligent failure of any person having the care or custody of an elder...to exercise that degree of care that a reasonable person in a like position would exercise.” (Welfare and Institutions Code, § 15610.57(a)(1).) Neglect includes, but is not limited to: (1) Failure to assist in personal hygiene, or in the provision of food, clothing or shelter; (2) Failure to provide medical care for physical and mental health needs...; (3) Failure to protect from health and safety hazards; (4) Failure to prevent malnutrition or dehydration; (5) Substantial inability or failure of an elder...to manage their own finances; and (6) Failure of an elder or dependent adult to satisfy any of those needs for themselves as a result of poor cognitive functioning, mental limitation, substance abuse, or chronic poor health. (Welfare and Institutions Code, § 15610.57(b).)

The complaint alleges that Decedent “was over 65 years of age at the time she was admitted” to the hospital. (Complaint, ¶ 72.) Plaintiffs allege that Defendants each “had a duty to observe, monitor, feed, interact with, and care for” Decedent. (Complaint, ¶ 28.) Specifically, the complaint alleges that Defendants were under a custodial obligation independent of their duty to properly deliver professional medical services. (Ibid.) The complaint alleges that “Defendants grossly and recklessly failed to use [] reasonable care” by failing “to provide for [Decedent’s] basic needs, including, but not limited to “failing to observe her affect, hydration and diet,...to appreciate the serious situation which led to the perforated gallbladder[.] [¶] [d]isregarding decedent’s complaints of pain,...[¶] [failing] to engage in palpitation, close observation, and additional non-invasive testing[.]...[and] [f]ail[ing] to assist [Decedent] in timely receiving medical care for serious condition....” (Complaint, ¶ 73.) The complaint alleges that because of such failures, Decedent was harmed, eventually passing away. (Complaint, ¶ 74.)

Here, the Court finds that the complaints allegations describe the substandard performance of medical decision making and care, rather than a failure to provide for basic custodial needs.

“Neglect within the meaning of Welfare and Institutions Code section 15610.57 covers an area of misconduct distinct from professional

negligence. As used in the Elder Abuse Act, neglect refers not to the substandard performance of medical services but, rather, to the failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations.” (Alexander v. Scripps Memorial Hospital La Jolla (2018) 23 Cal.App.5th 206, 223 [internal quotations omitted].) “Thus, the statutory definition of neglect speaks not of the undertaking of medical services, but of the failure to provide medical care.” (Ibid.) “The facts constituting the neglect and establishing the causal link between the neglect and the injury must be pleaded with particularity in accordance with the pleading rules governing statutory claims. [Citation.]” (Ibid.)

The complaints allegations demonstrate that the instant case is contrary to those cases where elder abuse was found to be properly pleaded as the complaint is replete with references to the medical care received by Decedent. (See Complaint, ¶¶ 26, 29-33, 35, 37-39, 51-53, 62.) The complaint’s allegations (failing to appreciate the serious situation leading to the perforated gallbladder, disregarding pain complaints, failing to engage in palpation and additional testing, and failing to assist in timely receiving medical care) primarily concern the standard or timing of such treatment. The complaint lacks sufficient factual allegations that Decedent was abandoned or ignored for extended periods of time. (Contrast Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 777, 778.) Further, to the extent that the complaint alleges conduct that could constitute a custodial failure, i.e. failure to observe hydration and diet, such allegations are conclusory in nature and lack the requisite particularity required to support a cause of action for elder abuse.

Accordingly, the demurrer is SUSTAINED on this ground.

3.

Code of Civil Procedure section 377.32

The County Defendants argue that Plaintiff, Rocco Angiuli, has failed to fully comply with the requirements of Code of Civil Procedure section 377.32 to establish that he has standing to bring a survival action as Decedent’s successor-in-interest. (Demurrer, p. 15.) Specifically, the County Defendants argue that Plaintiffs have failed to include a certified copy of the Decedent’s death certificate. (Ibid.)

Here, Plaintiff, Rocco Angiuli, alleges that he “is the successor in interest to his late motion, Domenica Angiuli CCP § 377.11” and “as the successor-in-interest...brings the included survivor claims on behalf of the estate” of Decedent. (Complaint, ¶¶ 3-4.) As such, the causes of action for medical malpractice (negligence) and elder abuse “are brought by Rocco Angiuli, pursuant to CCP §§ 377.10 to 377.35, inclusive.” (Ibid.)

The decedent’s personal representative or, if none, the decedent’s successor in interest may commence a decedent’s cause of action that survives a decedent’s death. (Code Civ. Proc., § 377.30.) Decedent’s “successor in interest” means the beneficiary of the decedent’s estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action. (Code Civ. Proc., § 377.11.) The person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent’s successor in interest under this article, shall execute and file an affidavit or a declaration under penalty of perjury under the laws of this state. (Code Civ. Proc., § 377.32, subd. (a).) In relevant part, section 377.32 requires that “[a] certified copy of the decedent’s death certificate shall be attached to the affidavit or declaration. (Code Civ. Proc., § 377.32(c), emphasis added.)

The declaration of Rocco Angiuli, attached to the complaint fails to include a certified copy of Decedent’s death certificate, as required by Code of Civil Procedure section 377.32(c). However, such a defect does not warrant the sustaining of a demurrer. “Section 377.32, however, ‘does not require that the affidavit be filed as a condition precedent to commencing or continuing [an] action.’ [Citation.] Instead, at most, ‘failure to file the affidavit could possibly subject the action to a plea in abatement.’ [Citation.]” (Aghaian v. Minassian (2021) 64 Cal.App.5th 603, 614.) The mere failure to file a declaration compliant with Code of Civil Procedure section 377.32 does not affirmatively show a lack of standing. The complaint adequately alleges that Plaintiff is the successor in interest entitled to bring the action. Such allegations are sufficient to survive demurrer.

To the extent that Plaintiff’s declaration is deficient for failure to attached a certified copy of the decedent’s death certificate, Plaintiff may correct the lack of such procedural noncompliance by filing an amended declaration with the Court.

Accordingly, the demurrer is OVERRULED on this ground.

Motion to Strike

The County Defendants move to strike Plaintiffs' request for punitive damages contained in the requested damages on the Second Cause of Action for Wrongful Death. The County Defendants argue that the prayer is barred by statute and further that the Complaint fails to allege sufficient facts to support an award of punitive damages.

Under Code of Civil Procedure section 436, the court may, upon a motion, "strike out any irrelevant, false, or improper matter inserted in any pleading" any may "strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Code of civil procedure section 425.13 provides that:

"In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed. The court may allow the filing of an amended pleading claiming punitive damages on a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code. The court shall not grant a motion allowing the filing of an amended pleading that includes a claim for punitive damages if the motion for such an order is not filed within two years after the complaint or initial pleading is filed or not less than nine months before the date the matter is first set for trial, whichever is earlier." (Code Civ. Proc., § 425.13(a).)

Here, the Court has sustained the demurrer as to Plaintiff's cause of action for elder abuse. The remaining claim asserted in the complaint arises from the alleged negligent treatment of a health care provider. Plaintiffs have failed to obtain court approval pursuant to Code of Civil Procedure section 425.13 and, as such, a claim for punitive damages is improper.

Accordingly, the motion to strike is GRANTED.

Conclusion

Based on the foregoing, the demurrer is SUSTAINED as to the third cause of action for elder abuse as to the County Defendants without leave to amend. The demurrer is otherwise OVERRULED. The motion to strike is GRANTED.

Defendant is to file a responsive pleading within 10 days notice of the court's ruling.